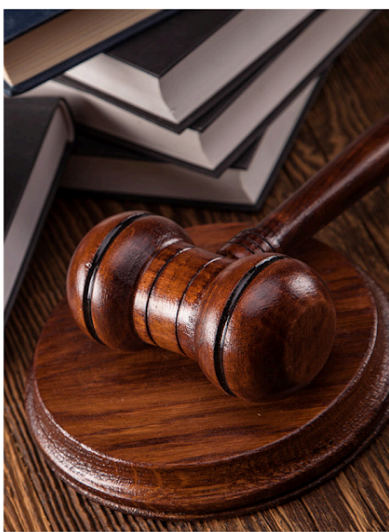


General Knowledge

Indian Polity

STUDY NOTES

Non-Constitutional Bodies



Non-Constitutional bodies

Non-Constitutional Bodies: Background, History, and Importance

Non-constitutional bodies are organizations, commissions, and institutions that are **not mentioned in the Constitution of India** but are established by the government through **executive resolutions or legislation**. These bodies play a significant role in governance, policy implementation, and advisory functions.

Background:

- **Established by the Executive or Legislature:** Non-constitutional bodies are created either by an executive resolution of the government or through specific legislation passed by Parliament.
- **Flexible Formation:** These bodies can be formed and dissolved by the government, providing flexibility based on the needs of governance and changing priorities.
- **Wide Range of Functions:** They perform varied roles, including advisory, regulatory, and policy formulation across sectors like finance, administration, education, etc.

History:

- **Evolution:** The need for Non-Constitutional Bodies became evident after independence to address specific issues that were not covered by the constitutional framework.
- **First Examples:** Some of the earliest non-constitutional bodies include **the Planning Commission (1950)**, which was responsible for economic planning in India before being replaced by the NITI Aayog in 2015.
- **Post-Independence Era:** Various other commissions like the **Finance Commission, Law Commission, and Election Commission** gained importance over time, catering to the evolving needs of a developing nation.

Importance:

- **Policy Implementation:** These bodies help the government in implementing key policy decisions and regulating important sectors (e.g., the **National Human Rights Commission**).
- **Advisory Role:** They provide expert advice to the government on matters like law reform, environmental conservation, economic planning, etc.
- **Sectoral Expertise:** Many Non-Constitutional Bodies have specific domain knowledge that enables the government to make informed decisions.
- **Flexibility:** Since these bodies are not constitutionally mandated, they can be easily adapted or dissolved based on changing needs.

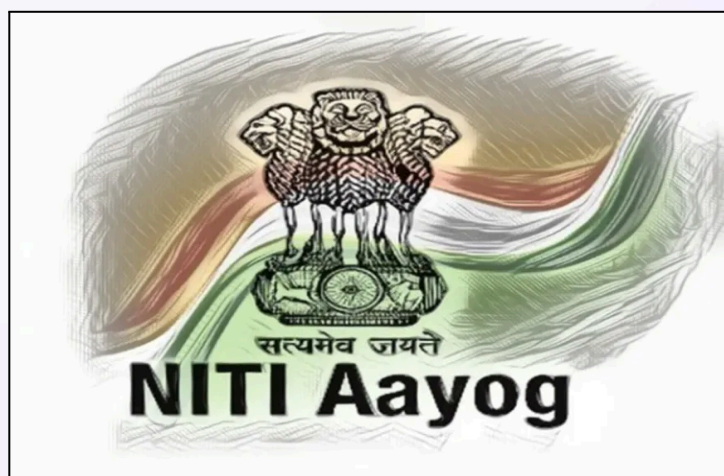
Non-Constitutional Bodies in India

Non-Constitutional Body	Year of Establishment	Role/Function
NITI Aayog	2015	Successor of the Planning Commission; provides policy advice and strategic direction to the government.
Central Bureau of Investigation (CBI)	1941 (reconstituted in 1963)	Investigates high-profile criminal cases, corruption, and national security-related issues.
National Human Rights Commission (NHRC)	1993	Protects and promotes human rights in India; investigates human rights violations.
Central Vigilance Commission (CVC)	1964	Monitors and advises the government on matters related to corruption in public administration.
National Commission for Women (NCW)	1992	Protects and promotes the rights of women; advises the government on policies related to women's welfare.
National Green Tribunal (NGT)	2010	Handles environmental protection cases and ensures the enforcement of legal rights related to the environment.
Securities and Exchange Board of India (SEBI)	1988 (Statutory in 1992)	Regulates the securities market, protects investors' interests, and promotes market development.
The Competition Commission of India (CCI)	2003	Prevents anti-competitive practices in the market, promotes competition, and ensures fair trade.
Lokpal and Lokayuktas	2013 (Act passed)	Investigates allegations of corruption against public officials, including those at

		higher levels in government.
National Commission for Minorities (NCM)	1992	Safeguards the rights and interests of religious minorities in India.
Central Information Commission (CIC)	2005	Ensures the right to information under the RTI Act, facilitating transparency in government operations.
Law Commission of India	1955	Recommends legal reforms and reviews existing laws to make them more effective and efficient.
National Disaster Management Authority (NDMA)	2005	Formulates policies, plans, and guidelines for disaster management; ensures prompt response during disasters.
University Grants Commission (UGC)	1956	Regulates universities and higher education institutions; provides financial support for education development.
Film and Television Institute of India (FTII)	1960	Provides training and education in film and television production; contributes to the growth of media and entertainment industries.

1. NITI Aayog

- **Year of Establishment:** 2015
- **Background:** NITI Aayog (National Institution for Transforming India) replaced the Planning Commission, which was responsible for economic planning. The shift was made to promote a more **decentralized** and **bottom-up approach** to planning and governance.
- **Functions:**



- Acts as a **think tank** for the government, providing strategic advice and direction.
- Facilitates **cooperative federalism** by fostering collaboration between central and state governments.
- Prepares **long-term development plans** and monitors their implementation.
- Promotes **innovation** and adoption of **new technologies**.
- **Power:** Provides policy inputs at the central and state levels but does not have any financial allocation powers like the Planning Commission.
- **Composition:** Chaired by the Prime Minister, it includes a Vice-Chairman (appointed by the Prime Minister), full-time members, part-time members, and ex-officio members from the Council of Ministers.
- **Significance:** NITI Aayog promotes efficient governance and policy formulation by focusing on economic and social issues in India, fostering data-driven strategies.

2. Central Bureau of Investigation (CBI)

- **Year of Establishment:** 1941 (as the Special Police Establishment); reconstituted in 1963
- **Background:** Initially set up to investigate corruption cases related to war supplies during World War II, the CBI later evolved to become India's premier **investigative agency** for complex and high-profile cases.
- **Functions:**
 - Investigates **serious crimes** such as corruption, financial fraud, and organized crime.
 - Conducts probes into **inter-state crimes**.
 - Investigates matters of national interest, including cases of corruption and **economic offenses**.
- **Power:** Functions under the jurisdiction of the Ministry of Personnel, Public Grievances, and Pensions and has powers to investigate and file charges related to various crimes across India.
- **Composition:** Headed by a Director (appointed for a 2-year term) and includes several officers from various branches like the Economic Offenses Division, Anti-Corruption Division, and Special Crimes Division.



- **Significance:** The CBI is crucial in maintaining transparency and accountability in governance and public administration, ensuring justice in high-stakes cases.

3. National Human Rights Commission (NHRC)

- **Year of Establishment:** 1993
- **Background:** Established under the Protection of Human Rights Act, 1993, the NHRC works to ensure the protection and promotion of **human rights** in India.
- **Functions:**
 - Investigates cases of **human rights violations** by public servants and other authorities.
 - Provides recommendations to the government on policies related to human rights.
 - Engages in **public awareness** and **human rights education**.
 - Reviews safeguards provided by the **Constitution** and other laws for the protection of human rights.
- **Power:** NHRC can investigate cases of human rights violations (except cases involving the armed forces) and recommend actions to the government. It can summon individuals, inspect institutions, and request reports.
- **Composition:** Consists of a Chairperson (retired Chief Justice of India or Supreme Court Judge), other members, and ex-officio members, including the Chairpersons of National Commissions for SCs, STs, Women, and Minorities.
- **Significance:** The NHRC is vital in promoting **social justice**, protecting vulnerable groups, and advising the government on rights-based policies.



4. Central Vigilance Commission (CVC)

- **Year of Establishment:** 1964
- **Background:** The CVC was established to **monitor** and **prevent corruption** in government organizations. It was later accorded statutory status in 2003.
- **Functions:**



- Supervises and guides government authorities in investigating corruption cases.
- Investigates complaints referred to it regarding corruption among government employees.
- Acts as an advisory body to the government on **vigilance matters**.
- Ensures transparency in public administration.
- **Power:** CVC has powers to direct CBI to investigate certain cases, oversee vigilance officers in government departments, and recommend corrective measures to the government.
- **Composition:** Consists of a Central Vigilance Commissioner (Chairperson) and two Vigilance Commissioners, all appointed by the President of India.
- **Significance:** The CVC plays a critical role in maintaining **public integrity** and trust in government institutions by fighting corruption.

5. National Commission for Women (NCW)

- **Year of Establishment:** 1992
- **Background:** Created to address the increasing incidents of **violence** and **discrimination against women**, the NCW was formed to **safeguard the interests of women**.
- **Functions:**
 - Reviews legal and constitutional safeguards for women and recommends necessary changes.
 - Addresses **grievances** of women, particularly in cases of gender-based violence.
 - Advises the government on **women's rights** and empowerment-related policies.
 - Undertakes studies and research on women's status in India.
- **Power:** The NCW can investigate cases, recommend amendments to laws, and assist women in legal matters. It lacks the power to enforce its recommendations.
- **Composition:** A Chairperson and members are appointed by the central government, who have experience in fields like law, economics, and social services.



- **Significance:** NCW works to ensure **gender justice**, addressing social and legal issues concerning women's rights and empowerment.

6. National Green Tribunal (NGT)

- **Year of Establishment:** 2010
- **Background:** NGT was established under the National Green Tribunal Act, 2010, to deal with matters related to **environmental protection** and **conservation**.
- **Functions:**
 - Resolves disputes related to **environmental laws**, including air and water pollution, forest conservation, and waste management.
 - Awards relief and compensation for damages caused to the environment.
 - Promotes the enforcement of legal rights for environmental protection.
- **Power:** NGT has the power to summon individuals, award compensation, and order relief for environmental damages. Its judgments are binding.
- **Composition:** Consists of a Chairperson (retired judge of the Supreme Court or High Court) and other judicial and expert members with knowledge of environmental law and science.
- **Significance:** The NGT plays a key role in **sustainable development** by ensuring quick and efficient resolution of environmental issues.



7. Securities and Exchange Board of India (SEBI)

- **Year of Establishment:** 1988 (Statutory body in 1992)
- **Background:** SEBI was established to regulate the **securities market** and protect the interests of investors. It was later given statutory powers through the SEBI Act, 1992.
- **Functions:**
 - Regulates stock exchanges and capital markets.



- Protects investors by ensuring **transparency** and **fair practices** in the securities market.
- Prevents **market fraud** and insider trading.
- **Power:** SEBI can frame regulations, conduct investigations, audit securities transactions, and impose penalties on violators.
- **Composition:** Headed by a Chairperson and includes members from the government and financial market experts.
- **Significance:** SEBI ensures the smooth functioning of **financial markets**, boosting investor confidence and economic stability.

8. Competition Commission of India (CCI)

- **Year of Establishment:** 2003
- **Background:** CCI was established under the Competition Act, 2002, to prevent practices having an adverse effect on **market competition**.
- **Functions:**
 - Promotes competition and **fair trade practices** in the market.
 - Prevents **monopolies** and **anti-competitive agreements**.
 - Regulates mergers and acquisitions to ensure healthy competition.
- **Power:** CCI has the power to investigate, conduct raids, impose penalties, and pass orders to regulate market behavior.
- **Composition:** Led by a Chairperson and 6 members with expertise in economics, law, and business.
- **Significance:** CCI ensures that markets function efficiently, promoting **consumer welfare** and preventing business malpractices.



9. Lokpal and Lokayuktas

- **Year of Establishment:** 2013 (Act passed)
- **Background:** The **Lokpal Act** of 2013 was enacted to address corruption at the highest levels of government, providing for the



establishment of **Lokpal** at the central level and **Lokayuktas** in states.

- **Functions:**
 - Investigates allegations of **corruption** against public servants, including ministers and high-ranking officials.
 - Ensures accountability in **public administration**.
- **Power:** Lokpal and Lokayuktas have the power to investigate, prosecute, and recommend action against corrupt public officials.
- **Composition:** Lokpal consists of a Chairperson and up to 8 members (half of whom must be judicial members).
- **Significance:** Lokpal and Lokayuktas are vital in ensuring **transparency** and **accountability**, reinforcing public trust in government institutions.

10. National Commission for Minorities (NCM)

- **Year of Establishment:** 1992
- **Background:** NCM was established to safeguard the rights of **religious minorities** and ensure their social and economic upliftment.
- **Functions:**
 - Protects the rights and interests of religious minorities.
 - Advises the government on minority welfare policies.
 - Investigates complaints regarding discrimination and deprivation of minority rights.
- **Power:** NCM has the power to investigate issues, recommend actions, and provide reports to the government regarding the status of minority rights, although it cannot enforce its decisions.
- **Composition:** Comprises a Chairperson and members representing different religious communities, appointed by the central government.
- **Significance:** NCM promotes **communal harmony** and ensures that minorities are adequately represented in national policies.



11. Central Information Commission (CIC)

- **Year of Establishment:** 2005
- **Background:** CIC was set up under the **Right to Information (RTI) Act, 2005** to ensure transparency in government operations.
- **Functions:**
 - Ensures citizens' **right to information** from public authorities.
 - Resolves disputes arising from the denial of information under RTI.
 - Promotes transparency and accountability in government.
- **Power:** CIC can summon public authorities, order the disclosure of information, and impose penalties for non-compliance.
- **Composition:** Headed by the Chief Information Commissioner, with up to 10 Information Commissioners.
- **Significance:** CIC plays a crucial role in **strengthening democracy** by promoting **government transparency** and empowering citizens with information.



12. Law Commission of India

- **Year of Establishment:** 1955
- **Background:** The Law Commission is an advisory body that recommends **legal reforms** to improve the justice system in India.
- **Functions:**
 - Reviews existing laws and suggests reforms.
 - Drafts **new laws** or amendments.
 - Addresses complex legal issues to make laws more efficient and people-friendly.
- **Power:** The Law Commission is advisory in nature. It suggests reforms, but its recommendations are not binding on the government.



- **Composition:** Consists of a Chairperson (usually a retired judge of the Supreme Court or a High Court) and members who are legal experts, including academicians and practitioners.
- **Significance:** The Law Commission is crucial for modernizing and updating India's legal framework, ensuring justice and fairness.

13. National Disaster Management Authority (NDMA)

- **Year of Establishment:** 2005
- **Background:** NDMA was established to lead and implement policies for **disaster management** across India.
- **Functions:**
 - Develops policies, plans, and guidelines for disaster risk reduction.
 - Coordinates disaster response and recovery operations.
 - Ensures **disaster preparedness** at all levels of government.
- **Power:** NDMA has the authority to implement policies, coordinate efforts across different ministries, and ensure the efficient handling of disasters.
- **Composition:** Headed by the Prime Minister of India as the Chairperson, along with other members, including experts in disaster management and emergency response.
- **Significance:** NDMA is key in minimizing disaster risks and ensuring a prompt and coordinated response to calamities.



14. University Grants Commission (UGC)

- **Year of Establishment:** 1956
- **Background:** UGC regulates **higher education** in India, providing funding and setting standards for universities and colleges.
- **Functions:**



- Allocates **grants** to universities and educational institutions.
- Promotes and maintains standards in higher education.
- Coordinates with government bodies for education policies.
- **Power:** UGC has the authority to grant recognition to universities and colleges, distribute funds, and monitor the functioning of higher education institutions.
- **Composition:** Headed by a Chairperson appointed by the central government, along with other members who are experienced in education, finance, and administration.
- **Significance:** UGC plays an important role in improving the quality of **higher education** and ensuring access to educational opportunities.

15. Film and Television Institute of India (FTII)

- **Year of Establishment:** 1960
- **Background:** FTII provides education and training in **film-making** and **television production**, contributing to the growth of India's media industry.
- **Functions:**
 - Offers specialized courses in **film direction, acting, editing**, etc.
 - Promotes innovation and creativity in the media industry.
- **Power:** FTII offers degree and diploma courses, conducts workshops, and collaborates with national and international institutions for academic and cultural exchange.
- **Composition:** Headed by a Director appointed by the government, and a governing council consisting of prominent film industry professionals and academicians.
- **Significance:** FTII plays a key role in shaping **cinematic arts** and producing skilled professionals for India's entertainment sector.

